Indiana University Health

Privacy Impact Assessment

This form is to be completed by third party vendors seeking to contract with Indiana University Health, Inc. (IU Health). All vendors must complete Sections 1 and 2. If the vendor does not qualify as a business associate (as defined in HIPAA), then the rest of the assessment does not need to be completed unless otherwise instructed. A vendor is a business associate (as defined in HIPAA) if it is a person or entity that performs certain functions or activities that involve the use or disclosure of protected health information (PHI) on behalf of, or for the provision of services to, IU Health.

Some of the questions may not apply to your organization or you may not know the answer. If this is the case, please write N/A or leave it blank. Once completed, the form should be returned to the Indiana University Health Privacy Office at HIPAA@iuhealth.org or ATTN: Chief Privacy Officer, 340 W. 10th Street, Suite 3100, Indianapolis, IN 46202. For questions, please call 317-963-1940.

Section 1: General Information

1. Name of Vendor:
   PeriGen Inc.

2. Primary Address of Vendor:
   100 Regency Forest Dr.
   Suite 200
   Cary, NC 27518

3. Phone Number of Vendor:
   984-208-4250

4. Vendor Preferred Contact Name, Phone, and E-mail:
   Bob Pierson
   404-822-9497
   Bob.Pierson@perigen.com

5. IU Health Department Affiliation – Please provide the IU Health contact (e.g. the individual negotiating or signing the contract): Sherri Jackson

6. IU Health Contact Name and Phone Number: Sherri Jackson

Section 2: Service and/or Product Information

7. What is the name of the agreement creating the business relationship?

   Hill-Rom Company Inc.
   IT Solutions Purchase and License Master Agreement for WatchChild and NaviCare WatchChild

   This agreement was originally executed by Hill-Rom but the NaviCare WatchChild business and product line was sold to PeriGen Inc. in September 2016. This agreement is still in place.

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8. What is the effective date or expected effective date of the contract? 5/25/2008

9. What is the term of the agreement in months? Auto renewal until either party terminates.

10. Please provide a short description of the service or product being provided:
PeriWatch (previously known as NaviCare WatchChild) is an electronic fetal monitoring solution for residing in your Labor and Delivery department. The solution provides central monitoring, fetal and maternal documentation and fetal and maternal threshold alerting.

11. Is there currently an active Business Associate Agreement?
☒Yes (Effective Date of BAA: (5/5/2010_____) ☐No ☐N/A

If yes, which IU Health entities are named in the BAA? The entities are listed in a separate affiliates agreement:

1. Legal Name of Affiliate: Indiana University Health Arnett
2. Legal Name of Affiliate: Indiana University Health Ball Memorial
3. Legal Name of Affiliate: Indiana University Health Methodist
4. Legal Name of Affiliate: Indiana University Health North
5. Legal Name of Affiliate: Indiana University Health University
6. Legal Name of Affiliate: Indiana University Health West
7. Legal Name of Affiliate: Indiana University Health Bloomington
8. Legal Name of Affiliate: Indiana University Health Paoli
9. Legal Name of Affiliate: Indiana University Health Jay County

12. Which IU Health entities PHI will be the subject of the vendor's agreement?

1. Legal Name of Affiliate: Indiana University Health Arnett
2. Legal Name of Affiliate: Indiana University Health Ball Memorial
3. Legal Name of Affiliate: Indiana University Health Methodist
4. Legal Name of Affiliate: Indiana University Health North
5. Legal Name of Affiliate: Indiana University Health University
6. Legal Name of Affiliate: Indiana University Health West

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7. Legal Name of Affiliate: Indiana University Health Bloomington

8. Legal Name of Affiliate: Indiana University Health Paoli

9. Legal Name of Affiliate: Indiana University Health Jay County

13. Which types of IU Health data or information, if any, will be used, created, stored, transmitted, accessed, viewed, or disclosed? (*Check all that apply.*)

☐ N/A – Continue to section 3.
☒ Protected Health Information (PHI)
If you will access PHI but do not know which elements, then please list which IUH systems/applications will you be accessing – otherwise, please check below:

_____

_____

☒ Patient Name (First, Last, or Both)
☒ Patient Contact Information (Address, Phone, Fax, E-mail, Web URLs, IP addresses)
☒ Dates (Birth Date, Admission and/or Discharge Date(s))
☐ Social Security Numbers
☒ Medical Record Numbers
☐ Health Plan Beneficiary Numbers
☒ Account Numbers
☐ Certificate/License Numbers
☐ Vehicle Identifiers and Serial Numbers (incl. license plate numbers)
☐ Device Identifiers and Serial Numbers
☐ Biometric Identifiers, including finger and voice prints
☐ Full face photographic images and any comparable images
☐ Any other unique identifying characteristic, number, or code
☐ De-identified Data (as confirmed by IU Health's data steward)
☐ Employee Data
☐ Financial Data
☐ Health Plans Data
☐ Other: _____

14. In what format or medium does the data or information exist? (*Check all that apply*.)

☐ Verbal
☐ Paper
☒ Electronic

15. Will you be transmitting or storing any IU Health data or information anywhere outside of IU Health?

☐ Yes
If yes, explain and provide specific locations where: _____
☒ No

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16. Will the services or product be provided on-site at an IU Health facility, or remotely?

☒ On-site at _____
☒ Remotely

17. How will your organization be accessing the IU Health data? (i.e. logging into IUH systems directly, receiving via e-mail or USPS, etc.) The PeriGen support team from time to time may be required to troubleshoot product problems. They would login remotely through SecureLink to access the product.

18. Will your organization be doing any data aggregation or de-identification of IU Health data or information? If yes, for what purpose?

☒ No
☐ Yes _____

19. Will your organization be using or disclosing PHI for any other purpose than for the services set forth in the agreement named above? If yes, please explain.

☒ No
☐ Yes _____

Section 3: Business Associate Qualification

20. Is Protected Health Information (PHI) being disclosed to you (vendor) other than in the capacity as a member of IUH's work force?

☒ Yes **(Continue to Question 2.)** ☐ No **(Stop. Not a business associate.)**

21. Is the PHI being disclosed to you (vendor) as a healthcare provider for treatment purposes (e.g. primary/referring physician, contract physicians or specialists, contract nursing staff, contract rehab staff, ambulance, home health, dentist, etc.)?

☐ Yes **(Stop. Not a business associate.)** ☒ No **(Continue to Question 3.)**

22. Is the PHI being disclosed to you (vendor) as a health plan for payment purposes, or to a health plan sponsor with respect to disclosure by a group health plan?

☐ Yes **(Stop. Not a business associate.)** ☒ No **(Continue to Question 4.)**

23. Is the PHI being disclosed to you (vendor) as or on behalf of government agency pursuant to an official investigation (e.g. CMS, OCR, OSHA, FDA, Health Department, etc.)?

☐ Yes **(Stop. Not a business associate.)** ☒ No **(Continue to Question 5.)**

24. Is the PHI being disclosed to you (vendor) as another Covered Entity as part of an organized healthcare arrangement with IU Health?

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☐ Yes **(Stop. Not a business associate.)** ☒ No **(Continue to Question 6.)**

25. Do you (vendor) create, receive, maintain, or transmit PHI for a function or activity regulated by HIPAA, including: claims processing or administration, data analysis, processing or administration, utilization review, quality assurance, patient safety activities, billing, benefits management, practice management, and repricing?

    ☒ Yes **(Business Associate.)** ☐ No **(Continue to Question 7.)**

26. Do you (vendor) provide legal, actuarial, accounting, consulting, data aggregation, management, administrative, accreditation, or financial services where the provision of such services involves disclosure of PHI to the vendor?

    ☐ Yes **(Business Associate.)** ☒ No **(Continue to Question 8.)**

27. Will you (vendor) be able to access PHI on a routine basis, AND/OR is there a possibility that the PHI in your custody or control could be compromised? (e.g., are you a data storage vendor, document shredding company, etc.?)

    ☐ Yes **(Business Associate.)** ☒ No **(Stop. Not a Business Associate.)**

If you have determined from the checklist above that you are a Business Associate, please complete the remaining Sections. If you are not a Business Associate, please sign on the last page and submit the form without completing any further sections. Thank you!

Section 4: Privacy and Security Contact Information

Please provide the names of Vendor's personnel responsible for Privacy and Security Officer duties for HIPAA compliance:

Privacy Officer	**Security Officer**
Name: _Bruno Bendavid_____	Same_____
Title: __SVP Product Management_____	_____
E-mail: _bruno.bendavid@perigen.com_____	_____
Phone:___514-488-3461 ext 229_____	_____

Section 5: Privacy and Security Practices
All Business Associates must complete this Section.

28. Please describe any privacy or security policies and procedures of your organization: See attached

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29. Please describe your organization's required employee training related to HIPAA, patient information, confidentiality, cyber hygiene, etc.: Annual HIPAA and security training is required by all employees as well as for new employee onboarding.

30. Does your organization have any privacy or security accreditations? Please provide the type of accreditation, accrediting agency, and date accredited. No

31. Does your organization carry Cyber Liability insurance with limits that are reasonable relative to industry standards? Who is the carrier and what are the limits? Yes, Endurance American Specialty Insurance Company, $5M

32. Will you contract with any subcontractors/third parties that may use or access to IU Health's information or data? Please name those subcontractors/third parties. No

Section 6: Privacy and Security Practices

Only Business Associates storing IU Health electronic data must complete this Section.

33. What is your organization's minimum standard security for electronic or digital data? (i.e. encryption in motion and at rest). Corporate servers are encrypted with MS Bitlocker (AES-256) + more major systems are MS 365 hosted and encrypted by design (AES-256)

34. Does your organization regularly conduct privacy and security audits? If so, how often and by whom are the audits conducted and does it include the network security? Annually.

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35. Identify and describe any locations and destinations for IU Health data that are not an IU Health or Business Associate owned and managed facility. Not applicable. IU Health data is hosted by IU and no data is transferred, processed or sent outside the IU health network.

36. Describe the audit capabilities for users and processes that access the data, and responsibility for providing an accounting of disclosure when requested. Only Ops personnel have access to the system allowing connectivity to customer sites (SecureLink). Authentication/Authorization is done via Azure AD + MFA. This provide details logs of every access to customer systems.

37. Describe how version control and/or change management is used to ensure system integrity and availability when a patch, fix, or upgrade is performed. PeriGen tracks every version or patch level deployed on each customer server. In addition, every change requires customer consent and testing on the TEST environment prior to scheduling deployment to PROD.

38. Is all of your organization's data secure and backed up such that if your organization's services or data center containing IU Health's data suffers an adverse event, your organization could continue business as intended? Yes. However, PeriGen does not host any customer data. Customer data is always hosted by the customer on customer controlled, managed, backed-up servers.

39. If and when the business relationship expires or terminates, will your organization return or destroy all data provided by IU Health? If not, please explain.

    ☒ Yes

    ☐ No _____

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Section 7: Signatures

Signed	Title: SVP Product Management
Bruno Bendavid	**984-208-4250**
Printed	Phone Number
Feb. 6, 2024	Bruno.bendavid@perigen.com
Date	E-mail Address

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